

*Open Book Account.* A book account is a form of common count defined as a detailed statement which constitutes the principal record of one or more transactions between a debtor and a creditor arising out of a contract or some fiduciary relation, and shows the debits and credits in connection therewith. *Professional Collection Consultants v. Lujan* (2018) 23 Cal. App. 5th 685, 690-91. A book account is ‘open’ where a balance remains due. *Id.* at 691. The elements are: 1) existence of the principal record of one or more transactions between creditor and debtor; 2) entries in the record that were made in the creditor’s regular course of business; and 3) the record was kept in a reasonably permanent form and manner. CCP § 337a. In deciding whether a book account exists, a court must examine the agreement between the parties and their conduct in the course of their dealings. *Maggio, Inc. v. Neal* (1987) 196 Cal. App. 3d 745, 752.

*Account Stated.* An account stated is ‘an agreement, based on prior transactions between the parties, that the items of an account are true and that the balance struck is due and owing. *Professional Collection Consultants v. Lauron* (2017) 8 Cal. App. 5th 958, 968; *Maggio, Inc. v. Neal, supra*, 196 Cal. App. 3d 745, 753. When an account stated is assented to, either expressly or impliedly, it becomes a new contract. Accordingly, an action on an account stated is not based on the parties’ original transactions, but on the new contract under which the parties have agreed to the balance due. *Professional Collection Consultants v. Lujan, supra*, 23 Cal. App. 5th 685. The elements are: 1) previous transactions between the parties establishing the relationship of debtor and creditor; 2) an agreement between the parties, express or implied, on the amount due from the debtor to the creditor; 3) a promise by the debtor, express or implied, to pay the amount due. *Zinn v. Fred R. Bright Co.* (1969) 271 Cal. App. 2d 597, 600. When a statement is rendered to a debtor and no reply is made in a reasonable time, the law implies an agreement that the account is correct as rendered. *Maggio, Inc. v. Neal, supra*, 196 Cal. App. 3d 745, 752.

The facts in this matter are straightforward and uncontested. Plaintiff has met its burden of proving each element of each cause of action and showing that there is no defense. The burden shifts to the Defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. Defendant has not opposed the motion. Defendant has provided no evidence that a triable issue of material fact remains.

The motion is **GRANTED**. Judgment is in favor of the Plaintiff in the amount of \$27,647.96 plus costs in the amount of \$860.00 for a total judgment of \$28,517.96. A proposed order and proposed judgment were lodged with the Court and will be modified to reflect the Court’s final ruling. The trial date of April 21, 2025 is vacated and the file will be closed when judgment is entered.

## **WILSON VS. DESHIELDS**

**Case Number: 24CV-0204481**

**Tentative Ruling on Order to Show Cause Re: Dismissal:** An Order to Show Cause Re: Dismissal issued to Plaintiff Wendy Dedicatoria Wilson for her failure to serve pleadings pursuant to California Rule of Court 3.110(b) and for failure to timely prosecute. The Complaint in this matter was filed on March 11, 2024. Proof of Service of Summons has not been filed. Plaintiff is in violation of CRC 3.110 and the Court has spent considerable time and resources on this matter to gain compliance with a basic Rule of Court. No response to the Order to Show Cause having been filed, and prior sanctions not being effective, the matter is **DISMISSED**.

\*\*\*\*\*

### **9:00 a.m. – Review Hearings**

\*\*\*\*\*

## **IN RE BARTLETT**

**Case Number: 25PB-0032800**

This matter is on calendar for review regarding status of funding. On February 25, 2025, this Court issued an Order after the February 18, 2025 hearing. The Court directed counsel to file an additional declaration with

evidentiary support for the amounts requested to be paid directly to the minor's mother for medical expenses. Counsel filed a Supplemental and Declaration and supporting evidence on February 27, 2025. The supplemental information appears to be sufficient. However, the proposed order is incomplete, and inconsistent with the approved distribution.

1. Item 8a(2) must include the \$10,190.59 to be paid to the petitioner for reimbursement for medical expenses. (Item 8a(4) relates to third party distributions – the minor's mother is Petitioner, not a third party.)
2. Item 8a refers to an Attachment 8(b)(2). This is improper. The form requires additional payee information to be provided on an Attachment 8a(3) in the same format. Additionally, addresses have not been provided for the payees at items 3(a) and 3(b).
3. Attachment 8(b)(2) directs \$133,549.60 to be paid to Landsem Law Office State Bar Trust Account. It is unclear what payment from the Petition this amount corresponds to.
4. Attachment 8(b)(2) also directs \$105,000 to be paid to Landsem Law Office State Bar Trust Account. It appears appropriate to direct \$4,809.41 to the trust account. However, it is unclear whether this is a client trust account, and if so, why attorney fees would be paid into a client trust account. Generally, an attorney's earned fees may not be deposited into a client trust account (except for small amounts necessary to cover bank charges). Rule of Professional Conduct 1.15(b).
5. The Balance for claimant at Item 8b. does not match the instructions on Attachment 8(b)(2), or the amount stated at Item 15 of the Petition.

An amended proposed order must be lodged. This matter is continued to **Monday, April 7, 2025 at 9:00 a.m. in Department 63** for confirmation of lodging an amended proposed order. That date will be vacated upon the Court's approval of an amended proposed order. **No appearance is necessary on today's calendar.**

**KING, ET AL. VS. TYNER, ET AL.**

**Case Number: 23CV-0202922**

This matter is on calendar for review regarding status of arbitration or dismissal. Plaintiff's Request for Dismissal of the entire action was entered January 17, 2025. This hearing is dropped from calendar. **No appearance is necessary.**

**LEPAGE VS. STEVE MANNING CONSTRUCTION, INC, ET AL.**

**Case Number: 23CV-0201849**

This matter is on calendar for trial setting. Defendants have filed a status report indicating that the parties have met and conferred and agree that a continuance of the trial setting conference is in order to allow time for discovery and deposition, which has been delayed despite the parties' efforts to move the case forward. Defendants request 180 days. Today's review hearing is continued to **Monday, September 8, 2025, at 9:00 a.m. in Department 63** for trial setting. **No appearance is necessary on today's calendar.**

**MCCLURE VS. NASISE, MD, ET AL.**

**Case Number: 24CV-0206369**

This matter is on calendar for review regarding trial setting. The previous trial date was vacated by the Court's order dated January 21, 2025. The Court designates this matter as a Plan II case and intends to set the matter for trial no later than May 5, 2026. Defendant has posted jury fees but Plaintiff has not. Plaintiff is granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are directed to meet and confer regarding mutually acceptable trial dates prior to the hearing.

**PIERCY, ET AL. VS. MCINTOSH, ET AL.**

**Case Number: 24CV-0204617**

This matter is on calendar for review regarding status of counsel and status of service. Attorney Christopher Wood has filed a Substitution of Attorney to represent Plaintiffs. No proof of service of summons has been filed. No status report has been filed. An appearance is necessary on today's calendar.